Banking Law — Previous Year Question Papers

Law of Banking & Negotiable Instruments · Osmania University LLB (3 YDC) Sem V / 5 YDC · **2012–2023**

20 sittings · 305 questions · every question tagged with its topic cluster · by **lawsticker-ai.com**

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Full text = exact questions. **Summary** = taken from copies shared online; the meaning is the same but the wording may differ slightly. Osmania usually sets **one common paper** for LLB 3 YDC Sem V and the 5-year course Sem IX — where a copy shows **only** the IX semester, treat it as a strong guide rather than a confirmed 3 YDC paper.

The topic clusters

Cluster	Covers	Unit	Qs
C4 · Negotiable instruments: kinds & presumptions	Definition, features, PN, bill, cheque, drafts, warrants, presumptions, maturity	III	60
C1 · Banking system, RBI & BR Act	History, kinds of banks, nationalisation, RBI, Banking Regulation Act, ombudsman	I	38
C2 · Banker & customer: relationship	Who is a banker / customer, debtor–creditor, trustee, agent, fiduciary, accounts	II	34
C5 · Holder, HDC, negotiation & endorsement	Holder in due course, kinds of endorsement, forged / partial / conditional endorsements	III	30
C8 · Paying banker	Payment in due course, countermand, forgery, statutory protection (S.85, 85A, 128)	IV	25
C10 · Lien, set-off, safe custody & lockers	Banker's lien, set-off, safe custody, lockers, nominees	V	23
C6 · Dishonour, discharge, alteration & S.138	Presentment, dishonour, noting & protest, material alteration, discharge, S.138	III	20
C3 · Banker's duties: secrecy, garnishee, honour	Secrecy & disclosure, garnishee order, duty to honour, wrongful dishonour, passbook	II	17
C12 · Bank guarantees & letters of credit	Kinds of guarantees, letters of credit, BG v LC	V	17
C7 · Crossing of cheques	General / special crossing, account payee, not negotiable	III	14
C11 · Loans, advances & securities	Principles of lending, overdraft, pledge, shares, guarantor, mortgage	V	12
C9 · Collecting banker	S.131 protection, negligence, outstation cheques	IV	8
C13 · Recovery: DRT & SARFAESI	Debts Recovery Tribunal, SARFAESI Act	V	6

Chip colour = how many questions the cluster gets **per paper** on average: **red T1** one or more · **amber T2** 0.6 to 1 · **green T3** fewer. See the **Banking Law PYQ Analysis** for the full picture.

January 2012 (Code 1027)

Only Part A and two essays are visible on the copy

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V sem

Part A — short notes

1	Letters of credit	C12 · Bank guarantees & letters of credit
2	'Mandatory injunction' (as read on the copy — unclear)	— · unclear / outside syllabus
3	Forgery	C8 · Paying banker
4	Crossed cheque	C7 · Crossing of cheques
5	Dividend warrants	C4 · Negotiable instruments: kinds & presumptions
6	Garnishee order	C3 · Banker's duties: secrecy, garnishee, honour
7	Bankers' cheques	C4 · Negotiable instruments: kinds & presumptions
8	Pledge	C11 · Loans, advances & securities

Part B — essays

9	Statutory protection given to bankers under the NI Act	C8 · Paying banker
10	Is the banker–customer relationship 'primarily' that of debtor and creditor? Illustrate.	C2 · Banker & customer: relationship

Aug 2012

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Banker's rights	C10 · Lien, set-off, safe custody & lockers
2	Account payee cheque	C7 · Crossing of cheques
3	Reserve Bank of India	C1 · Banking system, RBI & BR Act
4	Divided warrants	C4 · Negotiable instruments: kinds & presumptions
5	NABARD	C1 · Banking system, RBI & BR Act
6	Guarantor	C11 · Loans, advances & securities
7	Banker's drafts	C4 · Negotiable instruments: kinds & presumptions
8	Set-off.	C10 · Lien, set-off, safe custody & lockers

Part B — essays

9	Discuss the general relationship between the banker and the customer.	C2 · Banker & customer: relationship
10	Explain the salient features of Banking Regulation Act.	C1 · Banking system, RBI & BR Act
11	Write a brief essay on bank guarantees.	C12 · Bank guarantees & letters of credit
12	Examine the Statutory Protection provided to the paying banker under the Negotiable Instruments Act.	C8 · Paying banker

Part C — problems

13	A branch of a bank receives a garnishee order attaching all amounts of a customer Z. At the time of receiving the order Z has a joint A/c in the names of Z and Y with a balance of Rs. 10,000/- and a current A/c in the name of Z as executor to an estate of the late Mr. M with a balance of 25,000/-. Explain how the banker will exercise in legal powers.	C3 · Banker's duties: secrecy, garnishee, honour
14	A pays into his bank a cheque drawn on another banker payable to B and crossed it "Not Negotiable". Should A's bank take such a cheque inspite of such a crossing. Explain the legal position.	C7 · Crossing of cheques
15	A current A/c holders instruments his banker to close his A/c and transfer his balance to another branch. Subsequently a cheque is presented and returned with the objection "refer to drawer". The A/c holder sues the bank on the ground that his credit has been damaged. Examine the legal position of the bank.	C3 · Banker's duties: secrecy, garnishee, honour
16	A professor deposits into his account an outstation cheque for Rs. 8,000/- issued by the State Education Authorities. He demands immediate credit in his account against the cheque. Examine the legal position of the bank to pay.	C9 · Collecting banker

Feb/March 2013 (Code 4533)

Part C numbers are out of order on the copy

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V sem

Part A — short notes

1	Overdraft	C11 · Loans, advances & securities
2	Railway receipt	C4 · Negotiable instruments: kinds & presumptions
3	Collecting banker	C9 · Collecting banker
4	Reserve Bank of India	C1 · Banking system, RBI & BR Act
5	Trust account	C2 · Banker & customer: relationship
6	Special customers	C2 · Banker & customer: relationship
7	Holder in due course	C5 · Holder, HDC, negotiation & endorsement
8	Credit society	C1 · Banking system, RBI & BR Act

Part B — essays

9	When (a) may and (b) must a banker refuse to honour a customer's cheque?	C3 · Banker's duties: secrecy, garnishee, honour
10	Effect of alteration of a negotiable instrument on parties before and after it	C6 · Dishonour, discharge, alteration & S.138
11	How does the RBI control advances by commercial banks?	C1 · Banking system, RBI & BR Act
12	Examine and evaluate the banker–customer relationship	C2 · Banker & customer: relationship

Part C — problems

–	Customer draws a cheque relying on passbook entries; bank refuses for insufficient funds; payee asks for a lesser amount — advise the bank	C3 · Banker's duties: secrecy, garnishee, honour
–	Customer issues cheques, then dies; her minor son asks the bank to stop payment — discuss	C3 · Banker's duties: secrecy, garnishee, honour
–	House mortgaged to the bank by the husband without the wife's knowledge; she sells it — advise the bank on recovery	C11 · Loans, advances & securities
–	A breaks open B's safe, takes the cheque book, forges B's signature and draws money — who bears the loss?	C8 · Paying banker
–	Bank wrongly enters ₹1,00,000 instead of ₹10,000 in B's passbook; B's cheque to C is dishonoured; C sues B — decide	C3 · Banker's duties: secrecy, garnishee, honour

2013

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Customer	C2 · Banker & customer: relationship
2	Current Account	C2 · Banker & customer: relationship
3	Banker's Lien	C10 · Lien, set-off, safe custody & lockers
4	Forgeries	C8 · Paying banker
5	Collecting Banker	C9 · Collecting banker
6	Receipts	C4 · Negotiable instruments: kinds & presumptions
7	Pass Book	C2 · Banker & customer: relationship
8	Assignment	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Evaluate the effects of Nationalization of Banks of the Society.	C1 · Banking system, RBI & BR Act
10	What are the different kinds of endorsement of cheques?	C5 · Holder, HDC, negotiation & endorsement
11	What are the liabilities of a drawer and the endorsers in case of bill of exchange?	C6 · Dishonour, discharge, alteration & S.138
12	Explain salient features of Banking Companies Regulation Act.	C1 · Banking system, RBI & BR Act

Part C — problems

13	The customer of a bank has taken loan from his neighbour 'X' and issued post dated cheque for the amount with interest. The cheque was presented to the	C6 · Dishonour, discharge, alteration & S.138

	Bank on due date by 'X' and was informed that there was no money in that account. Discuss.	
14	Ramu issued a cheque to Pratap and 'B' the banker pays to the customer before the order of counter demanding on a special request by Pratap in a shorter time compared to normal course of action. Is the banker answerable to Ramu?	C8 · Paying banker
15	Kishore accepts a bill payable at the Punjab National Bank, Chandini Chowk and nowhere else. Discuss the validity of the acceptance and consequent effect of the bill.	C4 · Negotiable instruments: kinds & presumptions
16	A cheque is payable to 'X' or order. It is stolen and 'X' endorsement is forged. The banker pays the cheque in due course. Discuss whether the banker is discharged from his liability.	C8 · Paying banker

June 2014 (Code 653/BL)

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V sem

Part A — short notes

1	Crossed cheque	C7 · Crossing of cheques
2	Traveller's cheque	C4 · Negotiable instruments: kinds & presumptions
3	Promissory note	C4 · Negotiable instruments: kinds & presumptions
4	Fiduciary relationship	C2 · Banker & customer: relationship
5	Banker's drafts	C4 · Negotiable instruments: kinds & presumptions
6	Bank guarantee	C12 · Bank guarantees & letters of credit
7	Holder in due course	C5 · Holder, HDC, negotiation & endorsement
8	Document of title to goods	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Salient features of the Banking Regulation Act	C1 · Banking system, RBI & BR Act
10	Banking business and its importance in modern India	C1 · Banking system, RBI & BR Act
11	Law relating to the banker–customer relationship	C2 · Banker & customer: relationship
12	Salient features of the NI Act	C4 · Negotiable instruments: kinds & presumptions

Part C — problems

13	B obtains A's acceptance by fraud, endorses to C (holder in due course); C endorses to D, who knows of the fraud — can D recover from A?	C5 · Holder, HDC, negotiation & endorsement
14	Bill for 'one thousand rupees' with ₹100 written in the margin — valid? for what amount?	C4 · Negotiable instruments: kinds & presumptions
15	Bill drawn on Hong Kong payable 60 days after sight is presented for acceptance five months later and dishonoured — are prior parties discharged?	C6 · Dishonour, discharge, alteration & S.138
16	Bill payable three months after sight passes through several hands; drawee refuses to pay — rights of the holder	C6 · Dishonour, discharge, alteration & S.138

2014

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Negotiable instrument	C4 · Negotiable instruments: kinds & presumptions
2	Traveller's cheque	C4 · Negotiable instruments: kinds & presumptions
3	Trustee	C2 · Banker & customer: relationship
4	Forgery	C8 · Paying banker
5	Garnishee order	C3 · Banker's duties: secrecy, garnishee, honour
6	NABARD	C1 · Banking system, RBI & BR Act
7	Letter of credit	C12 · Bank guarantees & letters of credit
8	Bank Guarantee	C12 · Bank guarantees & letters of credit

Part B — essays

9	Discuss the general relationship between the banker and the customer.	C2 · Banker & customer: relationship
10	Explain the salient features of the Banking Regulation Act.	C1 · Banking system, RBI & BR Act
11	Examine the statutory protection provided to paying banker under the Negotiable Instruments Act.	C8 · Paying banker
12	Define a cheque and discuss the various kinds of cheques.	C4 · Negotiable instruments: kinds & presumptions

Part C — problems

13	'A' a customer has deposited jewels of Rs.50,000/- for safe custody. Later he becomes a debtor to the bank. Examine the legal rights of the banker.	C10 · Lien, set-off, safe custody & lockers
14	An open bearer cheque for Rs.5,000/- favouring X company is presented for cash payment at the counter by an unknown person. Can the cheque be honoured. Examine the legal position.	C8 · Paying banker
15	An Income Tax Officer directly writes to a bank to disclose details regarding certain customers of the bank who have accounts. Is the banker under an obligation to disclose? Discuss.	C3 · Banker's duties: secrecy, garnishee, honour
16	A cheque is drawn payable to 'B or order'. It is stolen and B's endorsement is forged. The banker pays the cheque in due course. Is the banker discharged from liability. Would it make any difference if the drawer's signatures were forged.	C8 · Paying banker

December 2015

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Letter of credit	C12 · Bank guarantees & letters of credit
2	Forgery	C8 · Paying banker
3	Crossed cheque	C7 · Crossing of cheques
4	Traveller's cheque	C4 · Negotiable instruments: kinds & presumptions
5	Trustee	C2 · Banker & customer: relationship
6	Bill of exchange	C4 · Negotiable instruments: kinds & presumptions
7	Setoff	C10 · Lien, set-off, safe custody & lockers
8	Reserve Bank of India	C1 · Banking system, RBI & BR Act

Part B — essays

9	Discuss the general relationship between the banker and the customer.	C2 · Banker & customer: relationship
10	Examine the stationery protection provided to the paying banker under the Negotiable Instruments Act.	C8 · Paying banker
11	What are the circumstances under which a negotiable instrument shall be dishonoured. What steps shall be taken by the holder of a dishonoured bill?	C6 · Dishonour, discharge, alteration & S.138
12	Discuss the salient features of the Negotiable Instruments Act.	C4 · Negotiable instruments: kinds & presumptions

Part C — problems

13	A signs an instrument in the following terms: "I promise to pay B or order Rs.500" what is this instrument?	C4 · Negotiable instruments: kinds & presumptions
14	An income tax officer directly writes to a banker to disclose certain details relating to his customers accounts. Examine whether the banker can legally disclose information.	C3 · Banker's duties: secrecy, garnishee, honour
15	'A' drew cheques in favour of B. A's clerk forged B's endorsement and negotiated the cheques to 'C' who took in good faith and for value. C received payment of the cheques. A claims to recover the amount from C. Will he succeed?	C5 · Holder, HDC, negotiation & endorsement
16	'X' a customer has deposited jewels worth of Rs.50,000 for safe custody. Later he becomes a debtor to the bank. Explain the legal right of the banker.	C10 · Lien, set-off, safe custody & lockers

May/June 2016

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Liquidity	C1 · Banking system, RBI & BR Act
2	Bankers clearing house	C1 · Banking system, RBI & BR Act
3	Indigenous Bankers	C1 · Banking system, RBI & BR Act
4	Promissory Note	C4 · Negotiable instruments: kinds & presumptions
5	Conditional Endorsement	C5 · Holder, HDC, negotiation & endorsement
6	Bankers lien	C10 · Lien, set-off, safe custody & lockers
7	Account payee	C7 · Crossing of cheques
8	Negotiable instrument	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Define a Bank. Discuss the law relating to Banking Business and its importance in modern times.	C1 · Banking system, RBI & BR Act
10	Explain the relationship between Banker and Customer in the changing scenario in India.	C2 · Banker & customer: relationship
11	What are the legal presumptions of a Negotiable instrument?	C4 · Negotiable instruments: kinds & presumptions
12	What is a letter of credit? Discuss the merits and demerits of making advances against stocks and shares.	C12 · Bank guarantees & letters of credit

Part C — problems

13	'A', the holder of a bill, endorses it to 'B or order' for the express purpose that 'B' get it discounted. B negotiates the bill to 'C' who takes it in good faith and for value. Explain the position of 'C'.	C5 · Holder, HDC, negotiation & endorsement
14	A, at point of pistol, forces 'B' to issue a bearer cheque in the name of 'A'. A afterwards hands over the cheque to 'C' who takes it in good faith and for valuable consideration. Is 'C' a holder in due course?	C5 · Holder, HDC, negotiation & endorsement
15	A customer of the Royal Bank drew an open cheque for Rs. 1000 payable to 'P', the cheque was stolen. The thief forged the payee's endorsement and presented the cheque for payment at the branch upon which it was drawn. The bank cashier paid the cheque without asking for proof of his identity. To whom is the bank liable for the cashier's action?	C8 · Paying banker
16	'B' obtains A's acceptance to a bill by fraud. B endorses it to 'C' who takes it as a holder in due course. 'C' endorses the bill to 'D' who knows of the fraud. Can 'D' recover from 'A'?	C5 · Holder, HDC, negotiation & endorsement

Jan/Feb 2017

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Fiduciary Relationship	C2 · Banker & customer: relationship
2	Mixed Banking	C1 · Banking system, RBI & BR Act
3	Bill of Exchange	C4 · Negotiable instruments: kinds & presumptions
4	Days of grace	C4 · Negotiable instruments: kinds & presumptions
5	Blank endorsement	C5 · Holder, HDC, negotiation & endorsement
6	Bankers set off	C10 · Lien, set-off, safe custody & lockers
7	Travellers cheques	C4 · Negotiable instruments: kinds & presumptions
8	Collecting Bunker	C9 · Collecting banker

Part B — essays

9	Explain the concept of banking and discuss the objectives, salient features of the Banking Regulation Act.	C1 · Banking system, RBI & BR Act
10	Explain the general relationship between Banker and Customer in India.	C2 · Banker & customer: relationship

11	What is meant by "Negotiable Instrument"? What are its characteristic features?	C4 · Negotiable instruments: kinds & presumptions
12	What is Banker's Lien? State the general precautions which a banker should take while granting loans and advances.	C10 · Lien, set-off, safe custody & lockers

Part C — problems

13	The holder of a promissory note for Rs.1,000 writes on it "Pay B Rs.500" and endorses the note. Explain the consequential developments.	C5 · Holder, HDC, negotiation & endorsement
14	A cheque is drawn payable to 'X' or bearer. Y steals it and negotiates it to Z. Is it possible for 'X' to get back the cheque from 'A'.	C5 · Holder, HDC, negotiation & endorsement
15	A bill payable to "X or order" was stolen. Y forged X's endorsement and endorsed it to 'Z', who takes it for value and in good faith. Shall Z acquire good title to it.	C5 · Holder, HDC, negotiation & endorsement
16	'D' accepted a bill of exchange drawn in London. An endorsee in arrangement with the drawer altered the place of drawing from "London" to America. Is 'D' liable on the bill.	C6 · Dishonour, discharge, alteration & S.138

Jan/Feb 2018 (Code 9571)

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Banking Regulation Act	C1 · Banking system, RBI & BR Act
2	Meaning of customer	C2 · Banker & customer: relationship
3	Travellers' cheques	C4 · Negotiable instruments: kinds & presumptions
4	Promissory notes	C4 · Negotiable instruments: kinds & presumptions
5	Payment in due course	C8 · Paying banker
6	Lien	C10 · Lien, set-off, safe custody & lockers
7	Bank guarantees	C12 · Bank guarantees & letters of credit
8	Dividend warrants	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Importance of banking business in national development	C1 · Banking system, RBI & BR Act
10	When may a banker disclose a customer's affairs?	C3 · Banker's duties: secrecy, garnishee, honour
11	Definition and main characteristics of a negotiable instrument	C4 · Negotiable instruments: kinds & presumptions
12	Main types of letters of credit in international trade	C12 · Bank guarantees & letters of credit

Part C — problems

13	A bank's licence is cancelled by the RBI — is there an appeal?	C1 · Banking system, RBI & BR Act
14	A cheque given as a gift — is the donee a holder in due course?	C5 · Holder, HDC, negotiation & endorsement
15	Set-off of an overdraft against a credit balance in a joint account	C10 · Lien, set-off, safe custody & lockers
16	Bill obtained by fraud — does a later endorsee get good title?	C5 · Holder, HDC, negotiation & endorsement

May/June 2018

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Cheque	C4 · Negotiable instruments: kinds & presumptions
2	Dividend warrant	C4 · Negotiable instruments: kinds & presumptions
3	Banker and customership Relationship	C2 · Banker & customer: relationship
4	Bill of exchange	C4 · Negotiable instruments: kinds & presumptions
5	Paying Banker	C8 · Paying banker
6	Banker's Setoff	C10 · Lien, set-off, safe custody & lockers
7	Letters of Credit	C12 · Bank guarantees & letters of credit
8	Money order	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Discuss the salient features of the Banking Regulation Act.	C1 · Banking system, RBI & BR Act
10	Explain the general relationship between banker and customer with special reference to debtor and creditor relationship.	C2 · Banker & customer: relationship
11	Discuss the salient features of the negotiable instruments Act.	C4 · Negotiable instruments: kinds & presumptions
12	What is a bank guarantee? How is it different from a letter of credit?	C12 · Bank guarantees & letters of credit

Part C — problems

13	A cheque which is drawn as payable to 'X' or bearer is lost 'Y' finds the cheque and negotiates it to 'M'. Originally the cheque belongs to 'Z'. It is possible for 'X' to claim the cheque again from 'Z'.	C5 · Holder, HDC, negotiation & endorsement
14	A bill payable to "X or order" was stolen by 'Y' who forged X's endorsement and negotiated the cheque to 'Z'. 'Z' took the cheque for value in good faith. Will 'Z' have a bonafide little to the cheque? Decide.	C5 · Holder, HDC, negotiation & endorsement
15	A Negotiable instrument is for Rs 10,000 the owner of the instrument endorses it for Rs 5,000. Decide whether this can be done?	C5 · Holder, HDC, negotiation & endorsement
16	"An endorsement on a cheque says 'pay C if he returns from Paris. If C does not return from Paris and Yet wants to claim the amount of the cheque. Can he succeed?	C5 · Holder, HDC, negotiation & endorsement

May/June 2019

Part A items 5 and 7 are not legible on the copy

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Customer	C2 · Banker & customer: relationship
2	Group banking	C1 · Banking system, RBI & BR Act
3	Overdraft	C11 · Loans, advances & securities
4	Banker's liability	C3 · Banker's duties: secrecy, garnishee, honour
6	IDBI	C1 · Banking system, RBI & BR Act
8	Garnishee order	C3 · Banker's duties: secrecy, garnishee, honour

Part B — essays

9	Who is a banker? Explain the general relationship between banker and customer.	C2 · Banker & customer: relationship
10	Penal provisions of the NI Act read with the IT Act	C6 · Dishonour, discharge, alteration & S.138
11	Modes of discharge of parties under the NI Act, 1881	C6 · Dishonour, discharge, alteration & S.138
12	Banker's duty of secrecy about the customer's account	C3 · Banker's duties: secrecy, garnishee, honour

Part C — problems

13	Cheque presented late; the last day falls on a public holiday	C6 · Dishonour, discharge, alteration & S.138
14	Debtor gives his creditor a cheque that is dishonoured — creditor's rights	C6 · Dishonour, discharge, alteration & S.138
15	An instrument saying 'please let the bearer have...' — is it a bill of exchange?	C4 · Negotiable instruments: kinds & presumptions
16	Bill payable to X or order: amount in words differs from the figures	C4 · Negotiable instruments: kinds & presumptions

2019

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Crossed cheque	C7 · Crossing of cheques
2	Bankers Draft	C4 · Negotiable instruments: kinds & presumptions
3	Fiduciary Relationship	C2 · Banker & customer: relationship
4	Bank endorsement	C5 · Holder, HDC, negotiation & endorsement
5	Collecting Banker	C9 · Collecting banker
6	Banker's setoff	C10 · Lien, set-off, safe custody & lockers
7	Bank Guarantees	C12 · Bank guarantees & letters of credit

8	Postal Order	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Trace the history of banking system in India and its importance in modern times.	C1 · Banking system, RBI & BR Act
10	Discuss the general relationship between banker and customer.	C2 · Banker & customer: relationship
11	What is a negotiable instrument? Is a cheque a negotiable instrument? Explain.	C4 · Negotiable instruments: kinds & presumptions
12	Explain the meaning of the term 'Banker's lien' State the general precautions which a banker should take while granting loans and advances.	C10 · Lien, set-off, safe custody & lockers

Part C — problems

13	A customer of a bank deposited security with the banker. Decide what kind of right the banker has against the security of the customer.	C10 · Lien, set-off, safe custody & lockers
14	The holder of a promissory note for Rs.10,000 writes on it "pay Rs.6,000" and endorses the note. Examine the consequences of such an endorsement.	C5 · Holder, HDC, negotiation & endorsement
15	A customer of the banker has a deposit of Rs.1,50,000/- in his account. He issues a cheque for Rs.50,000/- to the banker for payment. The banker refuses to honour the cheque of the customer. Examine the legal position.	C3 · Banker's duties: secrecy, garnishee, honour
16	If 'X' the endoser of a negotiable instrument on cheque endorses it in blank and transfer into 'Y' who in turn endorses it in favour of 'Z'. The letter transfer it without any endorsement to 'Q'. If the cheque is dishonoured. Who can 'Q' sue? Decide.	C5 · Holder, HDC, negotiation & endorsement

2020

16 questions

Full question text · from the lawsticker-ai.com PYQ archive · header: 3 YDC (our archive)

Part A — short notes

1	Inchoate Instrument	C4 · Negotiable instruments: kinds & presumptions
2	Liability of the drawee of a cheque	C8 · Paying banker
3	Purpose of Crossing of Cheque	C7 · Crossing of cheques
4	Co-operative Bank	C1 · Banking system, RBI & BR Act
5	Banking Ombudsman	C1 · Banking system, RBI & BR Act
6	Kinds of Indorsement	C5 · Holder, HDC, negotiation & endorsement
7	Noting and Protest	C6 · Dishonour, discharge, alteration & S.138
8	Foreign Instrument	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

9	Discuss the various provisions of Banking Regulation Act.	C1 · Banking system, RBI & BR Act
10	State the important provisions and procedure relating to dishonoured of cheque.	C6 · Dishonour, discharge, alteration & S.138
11	Explain in detail the evidential presumptions of Negotiable instruments.	C4 · Negotiable instruments: kinds & presumptions
12	Explain the jurisdiction and powers of Debt Recovery Tribunal.	C13 · Recovery: DRT & SARFAESI

Part C — problems

13	Amit issued a cheque of Rs.40,000/- in favour of a private school towards the payment of college fee. The cheque was presented for encashment by college through its banker. However the same was returned unpaid by the banker of Amit due to the reason "Account closed" college approaches you for advise. What action can school take.	C6 · Dishonour, discharge, alteration & S.138
14	Promissory note dated 1.2.2018 payable after two months. After date was mentioned in the note and addressed to the maker to pay 10 days after maturity. What is the date of maturity.	C4 · Negotiable instruments: kinds & presumptions
15	An endorsement on a cheque says "Pay C if he returns from London", A conditional endorsement. If 'C' does not return from London and yet wants to chain the amount in the cheque. Can be succeed.	C5 · Holder, HDC, negotiation & endorsement
16	A customer of the banker has a deposit of Rs.1,00,000/- in his account. He issues a cheque for Rs.1,10000/- in favour of 'Z'. The banker refuses to honour the cheque. Advice Z what to do?	C6 · Dishonour, discharge, alteration & S.138

February 2021 (Code 733)

2-hour paper · Part A any four, Part B any one, Part C any one

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Banker as debtor	C2 · Banker & customer: relationship
2	Traveller's cheque	C4 · Negotiable instruments: kinds & presumptions
3	Dividend warrants	C4 · Negotiable instruments: kinds & presumptions
4	Bank guarantees	C12 · Bank guarantees & letters of credit
5	Account payee	C7 · Crossing of cheques
6	Letters of credit	C12 · Bank guarantees & letters of credit
7	Forgery	C8 · Paying banker
8	Secured advances	C11 · Loans, advances & securities

Part B — essays

9	Salient features of the Banking Regulation Act	C1 · Banking system, RBI & BR Act
10	Kinds of relationship between banker and customer	C2 · Banker & customer: relationship
11	Define a cheque and discuss its kinds	C4 · Negotiable instruments: kinds & presumptions
12	Statutory protection to paying bankers under the NI Act	C8 · Paying banker

Part C — problems

13	Endorsee, with the drawer's consent, alters the place of drawing on an accepted bill — is the acceptor liable?	C6 · Dishonour, discharge, alteration & S.138
14	X endorses a cheque in blank to Y, Y to Z, Z hands it to M without endorsement; dishonoured — whom can M sue?	C5 · Holder, HDC, negotiation & endorsement
15	Cheque payable to X or order; X writes 'pay to Y' — consequences	C5 · Holder, HDC, negotiation & endorsement
16	Holder of a ₹50,000 promissory note writes 'Pay ₹25,000' and endorses it — consequences	C5 · Holder, HDC, negotiation & endorsement

Aug/Sept 2021 (Code 733/BL)

2-hour paper · Q10 is cut off on the copy

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Holder in due course	C5 · Holder, HDC, negotiation & endorsement
2	Promissory note	C4 · Negotiable instruments: kinds & presumptions
3	Objects of crossing of cheques	C7 · Crossing of cheques
4	Commercial bank	C1 · Banking system, RBI & BR Act
5	Bills in sets	C4 · Negotiable instruments: kinds & presumptions
6	SARFAESI	C13 · Recovery: DRT & SARFAESI
7	Debts Recovery Tribunal	C13 · Recovery: DRT & SARFAESI
8	Letters of credit	C12 · Bank guarantees & letters of credit

Part B — essays

9	Role of the RBI in India's economic development	C1 · Banking system, RBI & BR Act
11	Define presentment of a negotiable instrument; define cheque and distinguish it from a bill of exchange	C4 · Negotiable instruments: kinds & presumptions
12	Presumptions as to negotiable instruments under the NI Act	C4 · Negotiable instruments: kinds & presumptions

Part C — problems

13	A pays B by cheque; B presents in time but payment is refused because the bank has failed — B's rights	C6 · Dishonour, discharge, alteration & S.138
14	A signs a cheque as 'A, Agent' — is he personally liable on dishonour?	C6 · Dishonour, discharge, alteration & S.138
15	Accommodation bill passes A → B → C (no consideration) → D (for value) → E (no consideration) and is dishonoured — rights of each	C5 · Holder, HDC, negotiation & endorsement
16	Promissory note dated 31 July payable 'one month after date' — when is it due?	C4 · Negotiable instruments: kinds & presumptions

April/May 2022 (2-hour paper)

Most of Part A and Q9 are not legible on the copy

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Promissory note	C4 · Negotiable instruments: kinds & presumptions

Part B — essays

10	Legal character of the banker–customer relationship	C2 · Banker & customer: relationship
11	Principles of good lending	C11 · Loans, advances & securities
12	Negotiable instrument — definition and general characteristics	C4 · Negotiable instruments: kinds & presumptions
13	Endorsement and its different kinds	C5 · Holder, HDC, negotiation & endorsement

Part C — problems

14	Bank pays a cheque bearing a forged signature — can the true owner recover?	C8 · Paying banker
15	Bank claims a lien on a safe-deposit locker for an unpaid loan	C10 · Lien, set-off, safe custody & lockers
16	Valuables stolen from a locker — is the banker liable?	C10 · Lien, set-off, safe custody & lockers
17	Promissory note — claim against the maker's legal heirs after his death	C6 · Dishonour, discharge, alteration & S.138

April/May 2022 (3-hour paper)

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 5 YDC IX sem only

Part A — short notes

1	Banking business	C1 · Banking system, RBI & BR Act
2	Fiduciary relationship	C2 · Banker & customer: relationship
3	Crossing of cheques	C7 · Crossing of cheques
4	Deemed negotiable instruments	C4 · Negotiable instruments: kinds & presumptions
5	Paying banker	C8 · Paying banker
6	Banker's right of set-off	C10 · Lien, set-off, safe custody & lockers
7	Kinds of bank guarantees	C12 · Bank guarantees & letters of credit
8	Object of the SARFAESI Act	C13 · Recovery: DRT & SARFAESI

Part B — essays

9	Impact of information technology on banking	C1 · Banking system, RBI & BR Act
10	Meaning of 'customer' and the banker–customer relationship	C2 · Banker & customer: relationship
11	Protection available to a collecting banker under the NI Act	C9 · Collecting banker
12	Powers and functions of Debts Recovery Tribunals	C13 · Recovery: DRT & SARFAESI

Part C — problems

13	Customer deposits securities, shares and a sealed box with the bank — nature of the relationship	C2 · Banker & customer: relationship
14	Cheque payable 'provided the receipt form at foot is duly signed' — is it a valid cheque?	C4 · Negotiable instruments: kinds & presumptions
15	Cheque payable to 'M or order' stolen, M's signature forged, banker pays — can M recover from the banker?	C8 · Paying banker
16	Dividend warrants given for collection; customer then owes the bank — can the bank exercise lien?	C10 · Lien, set-off, safe custody & lockers

November 2022 (Code D-12724)

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 5 YDC IX sem only

Part A — short notes

1	Meaning of banking	C1 · Banking system, RBI & BR Act
2	Banker	C2 · Banker & customer: relationship

3	Account payee	C7 · Crossing of cheques
4	Crossed cheque	C7 · Crossing of cheques
5	Collecting banker	C9 · Collecting banker
6	Banker as trustee	C2 · Banker & customer: relationship
7	Banker's lien	C10 · Lien, set-off, safe custody & lockers
8	Pledge	C11 · Loans, advances & securities

Part B — essays

9	Nature, development and evolution of banking in India	C1 · Banking system, RBI & BR Act
10	Rights and duties of bankers	C3 · Banker's duties: secrecy, garnishee, honour
11	Provisions of the NI Act on dishonour of cheques	C6 · Dishonour, discharge, alteration & S.138
12	Legal incidents of commercial letters of credit	C12 · Bank guarantees & letters of credit

Part C — problems

13	Banker pays a cheque before the countermand reaches him — is he liable?	C8 · Paying banker
14	False passbook entries lead the customer to issue a post-dated cheque — banker's position	C3 · Banker's duties: secrecy, garnishee, honour
15	Joint locker of X and Y with nominees S and W; X dies — advise the bank	C10 · Lien, set-off, safe custody & lockers
16	'I promise to pay B ₹500 when B delivers the goods' — is it a promissory note?	C4 · Negotiable instruments: kinds & presumptions

April/May 2023

Question summary from copies available online (Studocu) — wording may differ slightly from the printed paper · header: 3 YDC V + 5 YDC IX

Part A — short notes

1	Banking business	C1 · Banking system, RBI & BR Act
2	Principal and agent	C2 · Banker & customer: relationship
3	Guarantor	C11 · Loans, advances & securities
4	Kinds of negotiable instruments	C4 · Negotiable instruments: kinds & presumptions
5	Crossed cheques	C7 · Crossing of cheques
6	Collecting banker	C9 · Collecting banker
7	Pledge	C11 · Loans, advances & securities
8	Shares	C11 · Loans, advances & securities

Part B — essays

9	Nature, development and evolution of banking in India	C1 · Banking system, RBI & BR Act
10	General relationship between banker and customer	C2 · Banker & customer: relationship
11	Statutory protection to a banker paying a cheque	C8 · Paying banker
12	Recovery powers under the Debts Recovery Tribunal Act	C13 · Recovery: DRT & SARFAESI

Part C — problems

13	Customer's jewels in safe custody; he later owes the bank — banker's rights	C10 · Lien, set-off, safe custody & lockers
14	Banker pays a cheque before receiving the countermand — liable?	C8 · Paying banker
15	Husband mortgages the house without the wife's knowledge — bank's recovery	C11 · Loans, advances & securities
16	Joint locker with nominees; one holder dies — advise the bank	C10 · Lien, set-off, safe custody & lockers